

#	Case Name	Tentative
		the successor to Knypstra Hermes, LLP, this is not supported by the evidence. (Knypstra Decl., ¶¶ 4-6 [alleged unpaid services which are the subject of the Complaint were performed by Knypstra Zermeno LLP, and are outside the scope of the subject Agreement]; <i>Benaroya v. Willis</i> (2018) 23 Cal.App.5th 462, 469 [“Numerous cases confirm the general rule that ‘a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration;’” citations omitted].) Further, Knypstra Zermeno LLP did unsuccessfully seek voluntary arbitration of the claims in the Complaint prior to initiating this action. (<i>Id.</i>, ¶ 6.) Moreover, even if the evidence showed that Knypstra Zermeno LLP is the successor to Knypstra Hermes, LLP, successor liability is not automatic, and cross-complainants have not shown successor liability applies here. (See <i>Ray v. Alad Corp.</i> (1977) 19 Cal.3d 22, 28 [“the rule ordinarily applied to the determination of whether a corporation purchasing the principal assets of another corporation assumes the other's liabilities ... states that the purchaser does not assume the seller's liabilities unless (1) there is an express or implied agreement of assumption, (2) the transaction amounts to a consolidation or merger of the two corporations, (3) the purchasing corporation is a mere continuation of the seller, or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller's debts”].) Finally, the court is not persuaded that it should exercise its discretion to deny arbitration based on the possibility of conflicting rulings between the instant action and <i>Knypstra Zermeno, LLP v. Chang</i>, OCSC Case No. 30-2026-01565092. (Code Civ. Proc., § 1281.2, subd. (c).) Moving party shall give notice of this ruling.
55.	Bank of the West v. David Griffiths & Company, Inc. 2023-01303207	Plaintiff and Judgment Creditor Bank of the West’s Motion for an Assignment Order and Restraining Order is GRANTED. Judgment Creditor Bank of the West seeks an assignment order for the right to payments due or to become due from any and all clients of the Judgment Debtors. Under Code of Civil Procedure section 708.510, “upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on

#	Case Name	Tentative
		future developments . . .” (Code Civ. Proc., § 708.510, subd. (a).) The judgment debtor may claim that all or a portion of the right to payment is exempt from enforcement of a money judgment by application to the court on noticed motion filed not later than three days before the date set for the hearing on the judgment creditor's application for an assignment order. (Code Civ. Proc., § 708.550, subd. (a).) Failure of the judgment debtor to make a claim of exemption is a waiver of the exemption. (Code Civ. Proc., § 708.550, subd. (a).) On April 19, 2023, Judgment was entered in the instant matter in favor of Judgment Creditor and against Judgment Debtors, David Griffiths & Company, Inc., a California corporation doing business as Griffiths, Diehl & Company, Inc. and David Griffiths, an individual in the amount of \$602,234.59. (Hoang Decl., ¶ 5, Ex. 1.) To date, no payments have been made toward satisfying the Judgment. Judgment Creditor is only able to identify one obligor (Moxxor LLC) of Judgment Debtors who appears to have made substantial payments to Judgment Debtors. Judgment Creditor argues it should not be penalized for not being able to provide a client list as Judgment Debtors have refused to provide such information. Moreover, Section 708.510 does not require the Judgment Creditor to name its obligors in a motion. (Code Civ. Proc., § 708.540.) Judgment Creditor also seeks an order enjoining the Judgment Debtors from assigning or otherwise disposing of the right to payment sought to be assigned upon. Code of Civil Procedure § 708.520 provides as follows: (a) When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned. The application shall be made on noticed motion if the court so directs or a court rule so requires. Otherwise, it may be made ex parte. (b) The court may issue an order pursuant to this section upon a showing of need for the order. The court, in its discretion, may require the judgment creditor to provide an undertaking. A restraining order is necessary as Judgment Debtors have not paid the Judgment and have refused to provide the names

#	Case Name	Tentative
		of their obligors. The restraining order is appropriate as a tool to prevent Judgment Debtors from engaging in any bad faith and to aid the Judgment Creditor in satisfying the Judgment. The motion is unopposed. The Judgment Creditor has made a sufficient showing, Accordingly, the motion is GRANTED. The court will execute the proposed order submitted in support of the motion. Judgment Creditor shall give notice of this ruling.
56.	Dirr v. Quizhpi 2024-01432550	Defendants Nelson Quizhpi and LQ Capital Trust, Inc.'s motion for change of venue is GRANTED. Defendants have shown venue is improper in Orange County. (See Code Civ. Proc. § 395 [venue proper "where the defendants or some of them reside."] No defendant resides in Orange County. Defendant LQ Capital Trust, Inc. is a resident of Los Angeles County. This matter is ORDERED transferred to Los Angeles County Superior Court. Specifically, this case is transferred to the Los Angeles County Superior Court located at 9355 Burton Way, Beverly Hills, CA 90210. Plaintiff is ordered to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of \$50, which must be paid via a check made payable to the clerk of the court, and (2) the first appearance fee for the new court, which must be paid via a separate check made payable to the clerk of the court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer. If plaintiff fails to pay the fees within 30 days, the case will be dismissed, without prejudice. The court sets a status conference regarding the transfer of this action for September 18, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.